

GAHC010169452025



2025:GAU-AS:10462

**THE GAUHATI HIGH COURT**  
**(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)**

**Case No. : AB/1855/2025**

NAZRUL ISLAM BARBHUIYA  
S/O- MOSRAF ALI BARBHUIYA.  
R/O- VILL.- SONAPUR KACHUTALI (PART), SUB-DIVN.- GUWAHATI, P.S.-  
SONAPUR, DIST.- KAMRUP(M), ASSAM.

VERSUS

THE STATE OF ASSAM  
REPRESENTED BY THE PP, ASSAM.

**Advocate for the Petitioner** : MR. M HUSSAIN, MS. A. MECH, MR I A HAZARIKA

**Advocate for the Respondent** : PP, ASSAM,

**BEFORE**  
**HONOURABLE MR. JUSTICE PRANJAL DAS**

**ORDER**

**08.08.2025**

- 1.** Heard Mr. M. Hussain, learned counsel for the petitioner.  
Also heard Ms. S.H. Bora, learned Additional Public Prosecutor for  
the State.
- 2.** This application under Section 482 of BNSS, 2023 has been

filed by the petitioner, namely, **Nazrul Islam Barbhuiya**, seeking pre-arrest bail in connection with **Sonapur P.S Case No.92/2025 under Sections 61/ 318(4) /316(2)/ 336(3)/ 317(4)/ 109/ 62/ 351(1)/351(3)/3(5) of BNS, 2023.**

**3.** The case arose out of an FIR dated 05.06.2025 lodged by two office bearer of the Tribal Association with the allegation that that some persons are involved in some kind of a racket to threaten and displace legitimate residents and settle unauthorized persons.

**4.** The learned counsel for the petitioner contends and submits that the petitioner is not named in the ejahar and submits that the police are seeking to arrest him merely on the basis of suspicion, giving rise to an apprehension of arrest though he is not at all connected with the allegations.

**5.** On the other hand, Ms. S.H. Bora, learned Additional Public Prosecutor for the State, submits that the case diary has been received and is placed before the Court.

**6.** It is fairly submitted that the witnesses examined have not implicated the petitioner; however, there is an investigation note/report by the I.O stating that the present petitioner is also one of the persons involved in the alleged racket of forging land documents and settling individuals with doubtful citizenship.

**7.** The allegations in the ejahar name only one person; however, the nature of the allegations appears to be quite serious, indicating involvement of a larger racket involved in such illegal activities of manipulating land and revenue documents and selling

them to persons.

**8.** Investigation is not yet completed.

**9.** In view of the given facts and circumstances, this may not be a fit case for grant of anticipatory bail at this stage. Therefore, the prayer for **interim bail** stands **rejected**.

**10.** Accordingly, this anticipatory bail is **disposed of**.

**11.** Return back the case diary.

**JUDGE**

**Comparing Assistant**